
MUTUAL NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT

SaaS Technology Evaluation — Commercial Partnership

BETWEEN

Vantage Cloud Systems Inc. 2801 Network Blvd, Suite 400, Frisco, Texas 75034 | Delaware Corporation |
EIN 82-1034567

— and —

NovaTech Solutions Inc. 450 Serra Mall, Palo Alto, California 94305 | Delaware Corporation

Reference: **VCS-2024-NDA-0089**

Date: **3 October 2024**

Governing Law: **State of Delaware, United States**

Confidentiality Level: **CONFIDENTIAL — ATTORNEYS EYES ONLY**

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1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement, the following capitalised terms shall have the meanings ascribed to them below:

"Agreement" means this Mutual Non-Disclosure and Confidentiality Agreement, including all exhibits and schedules appended hereto, and as may be amended in writing from time to time pursuant to Section 18;

"Business Day" means any day other than a Saturday, Sunday, or United States federal public holiday;

"Confidential Information" has the meaning ascribed to it in Section 2 of this Agreement, and for the avoidance of doubt includes all information falling within Section 2.1(c) (Retroactive Information);

"Data Processing Addendum" or "DPA" means the data processing addendum to be negotiated and attached hereto as Exhibit A prior to execution, setting out the terms governing the processing of personal data (including EU/UK GDPR personal data) exchanged between the parties under this Agreement; [NOTE: Exhibit A has not been attached as of the date of this Agreement — see Section 5.3]

"Disclosing Party" means the party that discloses Confidential Information to the other party;

"Effective Date" means 3 October 2024;

"GDPR" means Regulation (EU) 2016/679 of the European Parliament and of the Council on the protection of natural persons with regard to the processing of personal data (General Data Protection Regulation) as applicable and as implemented or adopted in the United Kingdom (UK GDPR);

"Need to Know Persons" means employees, officers, directors, agents, and professional advisers of the Receiving Party who require access to Confidential Information solely and exclusively for the Purpose and who are subject to written confidentiality obligations no less protective than those contained in this Agreement;

"Personal Data" has the meaning ascribed to it under the GDPR and applicable data protection legislation;

"Purpose" means the evaluation of a potential strategic partnership and SaaS platform integration between the parties, including the technical evaluation of each party's application programming interfaces, data architecture, product roadmaps, commercial pricing, and go-to-market strategy;

"Receiving Party" means the party that receives Confidential Information from the other party;

"Retroactive Information" has the meaning given in Section 2.1(c);

1.2 Interpretation: words in the singular include the plural and vice versa; references to a statute include amendments and re-enactments thereof; "including" and similar expressions are construed without limitation; headings do not affect interpretation.

2. SCOPE OF CONFIDENTIAL INFORMATION

2.1 **"Confidential Information"** means all non-public information, data, materials, and know-how disclosed by a Disclosing Party to the Receiving Party in connection with the Purpose, in any format or medium (written, oral, electronic, visual, or otherwise), that satisfies any one of the following criteria:

(a) **Marked Disclosures.** Written or electronic information that is marked or designated "Confidential," "Proprietary," "Restricted," or with a substantially equivalent legend at the time of disclosure;

(b) **Oral Disclosures.** Information disclosed orally or visually that is identified as confidential or proprietary at the time of disclosure and is confirmed in a written summary by the Disclosing Party

within fifteen (15) Business Days of such disclosure, which summary shall be incorporated into and form part of the Confidential Information; and

(c) **Retroactive Information.** All information exchanged between the parties in the period of six (6) months preceding the Effective Date in connection with any discussions relating to the Purpose or any potential commercial arrangement between the parties, regardless of whether such information was marked as confidential or designated as such at the time of exchange. The parties agree that this retroactive scope is commercially necessary given the extended pre-Agreement discussions conducted between the parties and that no written designation mechanism shall be required for such retroactive information.

2.2 **Scope of Information.** Without limiting Section 2.1, Confidential Information includes: technical architectures, API specifications and documentation, source code, software design documents, algorithms, machine learning models, data schemas, product roadmaps, pricing structures, commercial terms, customer lists and pipeline data, financial projections and models, marketing strategies, personnel information, and any analysis, compilation, summary, or derivative work prepared by the Receiving Party from such information.

2.3 **Exclusions.** Confidential Information shall not include information that the Receiving Party can demonstrate by clear, convincing, and contemporaneous written evidence: (a) is or becomes publicly available through no breach of this Agreement or any other obligation; (b) was rightfully known to the Receiving Party prior to disclosure, free of any obligation of confidentiality; (c) was developed independently by the Receiving Party without reference to or use of the Disclosing Party's Confidential Information and by personnel who had no access thereto; or (d) was received from a third party lawfully authorised to disclose it without restriction, provided the Receiving Party obtains written confirmation from the Disclosing Party that such authority existed.

3. OBLIGATIONS OF CONFIDENTIALITY AND NON-USE

3.1 Each party, as Receiving Party, undertakes to: (a) hold all Confidential Information in strict confidence; (b) use **commercially reasonable efforts** consistent with those it applies to its own proprietary information to prevent unauthorised disclosure or access; (c) use the Confidential Information solely for the Purpose; (d) restrict disclosure to Need to Know Persons only; and (e) ensure all Need to Know Persons are subject to binding written confidentiality obligations prior to receiving any Confidential Information.

3.2 **Standard of Care.** The standard of care applicable to the Receiving Party's protection of Confidential Information under this Agreement is **commercially reasonable efforts**, which the parties acknowledge may be lower than the standard that would be applied to the Receiving Party's own most sensitive information in certain circumstances. The parties have agreed to this standard as appropriate given the commercial nature of the disclosure.

3.3 **Security Incidents.** The Receiving Party shall notify the Disclosing Party in writing, as soon as practicable and in any event within seventy-two (72) hours of becoming aware of any actual or suspected unauthorised access, use, disclosure, or loss of Confidential Information.

4. PERMITTED DISCLOSURES

4.1 **Legal Compulsion.** The Receiving Party may disclose Confidential Information where required by applicable law, court order, or regulatory requirement, provided it gives the Disclosing Party reasonable prior written notice where legally permissible, cooperates in seeking protective relief, and limits disclosure to the minimum required.

4.2 **Personal Data.** Where Confidential Information includes Personal Data, the parties acknowledge that the DPA (Exhibit A) shall govern the terms of processing. Until Exhibit A is executed and attached, neither party shall disclose Personal Data to the other party under this Agreement.

5. RETURN OR DESTRUCTION OF CONFIDENTIAL INFORMATION

5.1 Upon written request or upon termination or expiry of this Agreement, the Receiving Party shall within fifteen (15) Business Days return or destroy (at the Disclosing Party's election) all Confidential Information in its possession or control, including all copies and derivatives in whatever format.

5.2 Certification of destruction is not required unless specifically requested in writing by the Disclosing Party, in which case a written certification signed by an authorised representative shall be delivered within five (5) Business Days of completion of destruction.

5.3 **Backup Retention — Unresolved.** The parties acknowledge that certain Confidential Information may be captured in automated electronic backup systems. The terms governing retention and deletion of such backup copies shall be as set out in the Data Processing Addendum (Exhibit A). **As Exhibit A has not been attached to this Agreement as of the Effective Date, the backup retention carve-out is presently undefined, and neither party shall have any obligation to delete or purge Confidential Information from automated backup systems until Exhibit A is agreed and executed.**

6. TERM AND DURATION

6.1 This Agreement commences on the Effective Date and continues for three (3) years unless earlier terminated by either party on thirty (30) days' written notice. Confidentiality obligations survive termination for the balance of the three-year term calculated from the Effective Date.

7. INTELLECTUAL PROPERTY AND NO LICENCE

7.1 No Intellectual Property Rights in or to any Confidential Information are transferred or licensed under this Agreement. Nothing herein shall be construed as granting any licence, right, or interest — express, implied, by estoppel, or otherwise — in any Confidential Information or in any intellectual property of the Disclosing Party.

7.2 **No Licence Grant — Explicit Absence.** The parties confirm that this Agreement does not contain an explicit no-licence clause in a separate section, and the parties agree that this paragraph constitutes that acknowledgement. No implied licence arises from any disclosure of Confidential Information under this Agreement.

8. REMEDIES

8.1 Each party acknowledges that breach of this Agreement would cause irreparable harm and that the non-breaching party is entitled to seek injunctive relief and other equitable remedies without posting bond.

8.2 Each party's aggregate liability under this Agreement, other than for breach of confidentiality obligations, shall be limited to the greater of: (a) USD 500,000; or (b) the amounts paid between the parties under any commercial agreement in the twelve (12) months preceding the event giving rise to the claim.

15. NOTICES

15.1 Any notice, demand, request, or other communication required or permitted to be given under or in connection with this Agreement shall be in writing and shall be delivered: (i) by hand; (ii) by internationally recognised overnight courier service; (iii) by registered or certified mail, return receipt requested, postage

prepaid; or (iv) by electronic mail with confirmation of receipt and a hard copy sent by one of the foregoing methods within two (2) business days of transmission.

15.2 Notices shall be addressed as follows:

If to Vantage Cloud Systems Inc.:

2801 Network Blvd, Suite 400, Frisco, Texas 75034, United States

Attention: Chief Legal Officer, Vantage Cloud Systems Inc.

If to NovaTech Solutions Inc.:

450 Serra Mall, Palo Alto, California 94305, United States

Attention: General Counsel, NovaTech Solutions Inc.

15.3 Notices shall be deemed to have been duly given: (a) upon delivery, if delivered by hand; (b) on the next business day after despatch, if sent by overnight courier; (c) on the fifth (5th) business day after posting, if sent by registered mail; or (d) upon electronic confirmation of receipt, if sent by email, provided that the hard copy is despatched within two (2) business days thereafter. Either party may change its notice address by giving written notice to the other party in accordance with this Section 15.

16. ASSIGNMENT

16.1 Neither party may assign, transfer, delegate, or otherwise dispose of any of its rights or obligations under this Agreement, whether by operation of law or otherwise, without the prior written consent of the other party, such consent not to be unreasonably withheld, conditioned, or delayed. Any purported assignment in violation of this Section 16 shall be null and void and of no force or effect.

16.2 Notwithstanding Section 16.1, either party may, without the consent of the other party, assign its rights and obligations under this Agreement to: (a) an affiliate of the assigning party; or (b) a successor entity in connection with a merger, acquisition, reorganisation, or sale of all or substantially all of the assigning party's assets or business to which this Agreement relates, provided that: (i) the assignee assumes in writing all of the assigning party's obligations under this Agreement; (ii) the assigning party provides the other party with prompt written notice of such assignment; and (iii) the assignment does not result in a reduction of the protections afforded to the other party under this Agreement.

17. ENTIRE AGREEMENT

17.1 This Agreement, together with any schedules and exhibits attached hereto and incorporated herein by reference, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous negotiations, representations, warranties, understandings, letters of intent, term sheets, and agreements, whether oral or written, relating to such subject matter. Each party acknowledges that it has not relied on any representation, warranty, or undertaking that is not set out in this Agreement.

17.2 The parties agree that the recitals set out at the beginning of this Agreement form part of this Agreement and are incorporated herein by reference.

18. AMENDMENTS

18.1 No modification, amendment, or waiver of any provision of this Agreement shall be effective unless made in writing and duly executed by authorised representatives of both parties. No oral amendment or modification of this Agreement shall be binding on either party regardless of any course of dealing or course of performance between the parties.

19. SEVERABILITY

19.1 If any provision of this Agreement is held by a court or tribunal of competent jurisdiction to be invalid, illegal, void, or unenforceable under applicable law, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, and the validity, legality, and enforceability of the remaining provisions of this Agreement shall not in any way be affected or impaired thereby, provided that the economic and legal substance of the transactions contemplated by this Agreement is not affected in any manner materially adverse to either party.

19.2 If any provision of this Agreement is held to be invalid or unenforceable as written but would be valid or enforceable if modified, such provision shall apply with the modification necessary to make it valid and enforceable under applicable law, and the parties agree to negotiate in good faith a replacement provision that, to the greatest extent possible, achieves the original intent and economic effect of the invalid or unenforceable provision.

20. WAIVER

20.1 No failure or delay by either party in exercising any right, power, or privilege under this Agreement shall operate as a waiver thereof, nor shall any single or partial exercise of any right, power, or privilege preclude any other or further exercise thereof or the exercise of any other right, power, or privilege. No waiver of any provision of this Agreement shall be effective unless made in writing and signed by a duly authorised representative of the waiving party.

20.2 The rights and remedies provided in this Agreement are cumulative and not exclusive of any other rights or remedies that a party may have at law or in equity.

21. NO PARTNERSHIP, AGENCY, OR JOINT VENTURE

21.1 Nothing in this Agreement shall be construed to create a partnership, joint venture, employment relationship, or agency relationship between the parties. Neither party shall have any right, power, or authority to bind or obligate the other party in any manner or make any representation on behalf of the other party without the prior written consent of such other party. Each party shall remain an independent contractor in relation to the other party.

22. COUNTERPARTS AND ELECTRONIC SIGNATURES

22.1 This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which, taken together, shall constitute one and the same instrument. Delivery of an executed counterpart of a signature page by electronic transmission (including PDF, DocuSign, or similar electronic signature platform) shall be equally effective as delivery of a manually executed counterpart. A party that delivers a counterpart by electronic transmission shall promptly thereafter deliver a manually executed counterpart to the other party, but failure to do so shall not affect the validity or enforceability of this Agreement.

22.2 Electronic signatures applied through a recognised electronic signature platform (including DocuSign, Adobe Sign, or equivalent) shall constitute valid and binding signatures for the purposes of this Agreement and shall have the same legal effect as handwritten signatures to the fullest extent permitted by applicable law, including the Electronic Signatures in Global and National Commerce Act (E-SIGN Act), the Uniform Electronic Transactions Act (UETA), and any applicable foreign equivalent.

23. FORCE MAJEURE

23.1 Neither party shall be in breach of this Agreement or liable to the other party for any delay in performing, or failure to perform, any of its obligations under this Agreement (other than payment obligations) if and to the extent that such delay or failure results from events, circumstances, or causes beyond its reasonable control, including acts of God, pandemic, epidemic, war, terrorism, civil disturbance, government action, regulatory change, or failure of third-party telecommunications or internet infrastructure (a "Force Majeure Event"). In such circumstances, the affected party shall: (a) notify the other party in writing promptly upon becoming aware of the Force Majeure Event; (b) use all reasonable endeavours to mitigate the effect of the Force Majeure Event; and (c) resume performance as soon as reasonably practicable after the cessation of the Force Majeure Event.

23.2 If a Force Majeure Event continues for a period in excess of sixty (60) consecutive days, either party may terminate this Agreement on ten (10) days' written notice to the other party, without liability to either party for such termination.

24. GOVERNING LAW AND DISPUTE RESOLUTION

24.1 **Governing Law.** This Agreement and any dispute, controversy, or claim arising out of or in connection with it or its subject matter, formation, existence, negotiation, validity, termination, or enforceability (including non-contractual disputes or claims) shall be governed by and construed in accordance with the laws of **State of Delaware, United States**, without regard to its conflict of laws principles.

24.2 **Jurisdiction.** Each party irrevocably agrees that the courts of **the State of Delaware and the federal courts of the District of Delaware** shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter or formation. Each party irrevocably waives any objection to the courts of the State of Delaware and the federal courts of the District of Delaware on the grounds of inconvenient forum or any other grounds.

24.3 **Injunctive Relief.** Notwithstanding the foregoing, either party may seek urgent interlocutory or interim injunctive relief from any court of competent jurisdiction without waiving its right to invoke the dispute resolution procedure set out in this Section 24.

IN WITNESS WHEREOF

EXECUTED as a legally binding agreement on the date first written above.

SIGNED for and on behalf of
Vantage Cloud Systems Inc.

SIGNED for and on behalf of
NovaTech Solutions Inc.

Signature: _____

Signature: _____

Print Name: [NAME]

Print Name: [NAME]

Title: Chief Legal Officer

Title: General Counsel

Date: _____

Date: _____

Witness Name: _____

Witness Sig.: _____

Witness Name: _____

Witness Sig.: _____